

Prasoon Kumar — contempt of clause 6.5 direction dismissed on compliance

High Court of Judicature at Allahabad · Single Judge · 11 November 2022 · Contempt Application (Civil) No. 3588 of 2022 ·
Contempt dismissed and notice discharged after clause 6.5 objections were decided.

HEADNOTE

Where a writ court had only directed that an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 be decided, and the opposite party produced an affidavit showing that those objections were decided, the High Court held that nothing remained for adjudication in contempt. The application was dismissed and the notice discharged. The Court did not re-examine the merits of the 6.5 decision or the underlying bill.

FACTUAL SUMMARY

The applicants, M/s Prasoon Kumar and Prashant Kumar, filed civil contempt alleging non-compliance of the 27 May 2022 writ order in Writ-C No. 11135 of 2022. That order had required them to submit an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by the opposite parties (engineer Manoj Kumar Agrawal and others). After notice on a prima facie case, the opposite parties filed an affidavit stating the objections were decided on 11 July 2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of a clause 6.5 writ direction

HOLDING

Where the writ court had required only that a clause 6.5 objection be decided, and an affidavit of compliance showed that the objections were decided, nothing remains to be adjudicated in contempt; the application is dismissed and the notice discharged, without re-deciding the bill or the 6.5 order. ¶ 1

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill

The writ direction was only to decide a clause 6.5 objection. After the opposite party showed that the objections were decided on 11.07.2022, the High Court dismissed contempt and discharged notice without examining the bill or the correctness of that 6.5 decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 11.07.2022 CLAUSE 6.5 DECISION AND THE UNDERLYING BILL

Contempt jurisdiction treated the writ direction as spent once the objection was decided; the Court did not review that decision. ¶ 1